

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0010069

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: BSM CONSTRUCTION	
vs.	
DEFENDANT: CLOCKTOWER MARIN, LLC	

NATURE OF PROCEEDINGS: MOTION – STAY

RULING

Plaintiff BSM Construction, Inc. filed a notice and motion on June 10, 2026 seeking an order to stay further proceedings pending completion of arbitration. This motion is based on an agreement by the parties to arbitrate the case.

Defendant did not file an Opposition. The failure to oppose is considered consent to the request. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

The motion is GRANTED and the matter is stayed. A case management conference is set for March 15, 2027, at 9 a.m. in this department for an update regarding the arbitration progress.

Plaintiff to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).